

TAB 4



Board of Education Report

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File #: Rep-006-22/23, **Version:** 1

**Adoption of a Resolution to Exempt the Proposed Bright Star Schools-Rise Kohyang Middle School Project From Local Land Use Regulations Under Government Code Section 53094 (Requires 2/3 Vote)
February 7, 2023
Facilities Services Division**

Action Proposed:

Adopt, by a two-thirds vote of its members, the Resolution in Attachment A which makes the necessary findings of fact pursuant to the requirements of Government Code Section 53094, to exempt from the City of Los Angeles (City) zoning ordinances, including City redevelopment plans, the proposed Bright Star Schools (Bright Star) project known as Rise Kohyang Middle School (Rise Kohyang MS) (Project) to be located at the southwest corner of West Olympic Boulevard and Beacon Avenue, commonly known as 1700 West Olympic Boulevard (Project Site).

Background:

The Project is funded by State of California Charter School Facilities Program (CSFP) and Los Angeles Unified School District's (Los Angeles Unified) Augmentation Grant. The CSFP funds are comprised of a grant and a loan, subject to final apportionment by the State. In accordance with CSFP, Los Angeles Unified has executed the CSFP Memorandum of Understanding and has issued a 40-year lease to Bright Star (Lease). Since 2020, the Board of Education (Board) has adopted three proposals to support the implementation of the Bright Star Rise Kohyang MS Project. On August 25, 2020, the Board amended the Facilities Services Division (FSD) Strategic Execution Plan (SEP) to approve a \$32,793,996 charter augmentation grant for the Project and authorized staff to negotiate and execute agreements for the financing of the Project, which included taking title of the property, in accordance with the Los Angeles Unified Charter Augmentation Grant Program Guidelines (Guidelines).

In accordance with the Guidelines, Bright Star transferred title to the Project Site to Los Angeles Unified on July 15, 2022. Bright Star obtained Division of the State Architect (DSA) approval of the construction plans for the Project. The proposed Project requires exemption from local zoning ordinances in order to construct the school facilities. The proposed Resolution makes the necessary findings of fact pursuant to the requirements of Government Code Section 53094, to make local city and county zoning ordinances, including city and county redevelopment plans, inapplicable to the Project Site, which is owned by Los Angeles Unified. The Project Site includes one single parcel (Assessor's Parcel Number 5137-017-014) comprised of five smaller lots, two of which have commercial zoning designations, which allow for school use. The remaining three lots are zoned for residential purposes and use for a school would require a Conditional Use Permit. The proposed zoning exemption will allow Bright Star to construct the Project and use the facilities for school use as Rise Kohyang MS (all five lots) and thereby securing a long-term facility for its 6th - 8th middle school.

The Project is being developed by Bright Star and will provide school facilities for approximately 450 students in 6th through 8th grades. The Project Site is located on a 1.01-acre property acquired by Bright Star in November 2020 located at the property commonly known as 1700 West Olympic Boulevard in the Pico-Union neighborhood in the City of Los Angeles. The property consists of a dirt parking lot with several planting areas, enclosed by concrete block walls and fencing.

Bright Star will construct an approximately 69,200 square foot school which consists of a four-story classroom building with 21 classrooms, including a science lab, collaborative spaces, administrative offices, restrooms, support spaces, a lunch and food service area, a multipurpose room, an outdoor basketball court and synthetic turf area for assemblies, physical education, and free play, outdoor learning spaces, and an underground parking lot with 48 parking spaces.

Rise Kohyang MS currently serves 347 students in 6th through 8th grades at its private leased site. The Project, once completed, will provide a long-term location for Rise Kohyang MS for approximately 450 students in 6th through 8th grades, as established under its approved charter petition, and allows Rise Kohyang MS to relocate the students it serves to the newly constructed school facility. Bright Star will waive its rights under Proposition 39 for the term of the Lease.

The Charter Schools Division has determined that Bright Star is in good standing and compliance with the terms of its renewal charter petition for Rise Kohyang MS which was approved by the Board on December 8, 2020 (“Charter Petition”) for five years beginning July 1, 2021 until June 30, 2026. With regards to its financial standing, a review of Bright Star’s financial audit on Rise Kohyang MS indicates the organization is in overall good financial standing.

The proposed Project is anticipated to start construction during the fourth quarter of 2023 and be completed by the fourth quarter of 2025.

The proposed Project is located within the boundaries of MacArthur Park Community of Schools, Region East and Board District 2 (Rocio Rivas).

Expected Outcomes:

Adoption of this Resolution will exempt the proposed Project from applicable City zoning ordinances and redevelopment plans. This will allow Bright Star to construct the proposed Project for school use.

Board Options and Consequences:

Adoption of staff’s proposal would exempt the proposed Project from applicable City zoning ordinances, thereby allowing Bright Star to construct the facilities for school use.

If the proposal is not adopted, Bright Star will be required to comply with City zoning ordinances and seek a conditional use permit, which would likely impact the proposed Project’s schedule and budget, and may jeopardize the proposed Project’s feasibility as currently approved by DSA.

Policy Implications:

The proposal supports the implementation of the proposed Project, for which the Board has approved and adopted the MND on February 8, 2022 (Board Report Nos. 134-21/22 and 135-21/22), and allocated funding for, under Los Angeles Unified’s Charter Augmentation Grant Program on August 25, 2020 (Board Report No. 014-20/21). Moreover, this action helps facilitate the Board-adopted FSD SEP and is consistent with Los Angeles Unified’s Charter School Facilities Expansion Program Policy, adopted on July 10, 2007, which designated program requirements for projects that provide long-term facility solutions as an alternative to the annual Proposition 39 allocation of District facilities (Board Report No. 304-06/07).

Budget Impact:

This action does not have a budget impact. The Board previously authorized funding in the amount of \$32,793,996 for the proposed Project (Board Report No. 014-20/21), comprised of \$31,093,996 as an augmentation grant to Bright Star for the construction of the Project, with the balance covering Los Angeles Unified’s oversight to ensure compliance with Los Angeles Unified’s guidelines and approvals, including, but

not limited to, DSA inspection during construction, environmental review, design review, and development of necessary agreements and instruments. Funding for the Project will be provided from Bond Program funds earmarked specifically for charter school facilities upgrades and expansions. Bright Star anticipates funding its portion of \$31,093,996 with funds provided through the State CSFP.

Student Impact:

The proposed Project, once completed, will help ensure that the students attending Rise Kohyang MS are provided with a safe and healthy environment, and up-to-date facilities that promote learning.

Equity Impact:

Not Applicable.

Issues and Analysis:

Local cities and counties adopt zoning ordinances and anticipate compliance by proposed new developments within their jurisdiction. Government Code Section 53094 provides that by a two-thirds vote of its members the governing board of a school district may render a city or county zoning ordinance inapplicable for use of property as classroom facilities.

Rise Kohyang MS serves approximately 347 students in a private leased office facility, with a term through the Summer of 2023. Bright Star has indicated their lease will not be extended and are trying to find a new interim facility. In case Bright Star is unsuccessful in locating an interim facility, and as a back-up measure, Bright Star has applied for Los Angeles Unified facilities under Proposition 39 for the 2023-24 school year and may require facilities until the completion of the Project. If the proposal is not approved, Bright Star will need to comply with City zoning ordinances and would seek a conditional use permit. This is anticipated to take an additional one and a half to two years. A schedule delay would likely result in additional costs and further utilization of Los Angeles Unified facilities through Proposition 39.

If the construction bid comes in higher than anticipated, Bright Star may request that Los Angeles Unified fund 50% of the additional cost increase. If so, staff will return to the Board to request authorization for funding the requested increase.

The Resolution has been reviewed by the Office of General Counsel and there are no significant legal issues in adopting this Resolution.

Attachments:

- Attachment A - Resolution
- Previously adopted Board reports referenced in the background section:
 - o Adopted August 25, 2020: [Board Report No. 014-20/21](https://drive.google.com/file/d/12eu0pi5T45rBbWmjp1jSHPXE9tqiqm7m/view?usp=sharing)
[<https://drive.google.com/file/d/12eu0pi5T45rBbWmjp1jSHPXE9tqiqm7m/view?usp=sharing>](https://drive.google.com/file/d/12eu0pi5T45rBbWmjp1jSHPXE9tqiqm7m/view?usp=sharing)
 - o Adopted February 8, 2022: [Board Report Nos 134-21/22](https://drive.google.com/file/d/1ZWtY8aV9qXU2UtKzEOuVL5y8k4Xetw3H/view?usp=sharing)
[<https://drive.google.com/file/d/1ZWtY8aV9qXU2UtKzEOuVL5y8k4Xetw3H/view?usp=sharing>](https://drive.google.com/file/d/1ZWtY8aV9qXU2UtKzEOuVL5y8k4Xetw3H/view?usp=sharing)
and [135-21/22](https://drive.google.com/file/d/1hRS03ueE61e32ToXJgUKcEXdr8_M7vrx/view?usp=sharing)
[<https://drive.google.com/file/d/1hRS03ueE61e32ToXJgUKcEXdr8_M7vrx/view?usp=sharing>](https://drive.google.com/file/d/1hRS03ueE61e32ToXJgUKcEXdr8_M7vrx/view?usp=sharing)

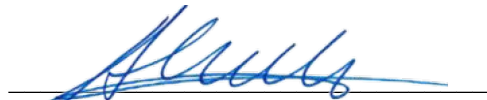
Informatives:

Not Applicable

Submitted:

01/30/2023, Revision # 1

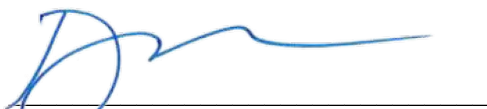
RESPECTFULLY SUBMITTED,


ALBERTO M. CARVALHO
Superintendent

APPROVED BY:


PEDRO SALCIDO
Deputy Superintendent,
Business Services and Operations

REVIEWED BY:

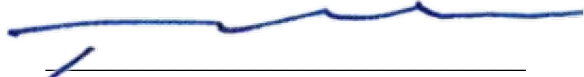

DEVORA NAVERA REED
General Counsel

APPROVED BY:


MARK HOVATTER
Chief Facilities Executive
Facilities Services Division

✓ Approved as to form.

REVIEWED BY:


TONY ATIENZA
Director, Budget Services and Financial Planning

PRESENTED BY:


AARON BRIDGEWATER
Director of Facilities Planning & Development
Facilities Services Division

✓ Approved as to budget impact statement.

**LOS ANGELES UNIFIED SCHOOL DISTRICT
Board of Education Report**

Attachment A

A RESOLUTION BY THE LOS ANGELES UNIFIED SCHOOL DISTRICT (LOS ANGELES UNIFIED) RENDERING CITY OF LOS ANGELES ZONING ORDINANCES, INCLUDING REDEVELOPMENT PLANS, INAPPLICABLE TO THE BRIGHT STAR SCHOOLS' USE OF PROPERTY LOCATED AT THE SOUTHWEST CORNER OF WEST OLYMPIC BOULEVARD AND BEACON AVENUE, COMMONLY KNOWN AS 1700 WEST OLYMPIC BOULEVARD IN LOS ANGELES FOR THE RISE KOHYANG MIDDLE SCHOOL PROJECT PURSUANT TO CALIFORNIA GOVERNMENT CODE SECTION 53094 AND MAKING FINDINGS OF FACT RELATED THERETO.

Whereas, Bright Star Schools (Bright Star), the operator of Rise Kohyang Middle School (Rise Kohyang MS), proposes to construct a school facility for approximately 450 students in 6th through 8th grades (Project) located at 1700 West Olympic Boulevard in Los Angeles (Project Site), within the geographical jurisdiction of the Los Angeles Unified;

Whereas, the Project Site includes one single parcel (Assessor's Parcel Number 5137-017-014) comprised of five smaller lots, two of which have commercial zoning designations, which allow for school use. The remaining three lots are zoned for residential purposes, and use for a school would require a Conditional Use Permit;

Whereas, the Project Site consists of an asphalt and concrete parking lot with several planting areas, enclosed by concrete block walls and fencing;

Whereas, on August 25, 2020, the Board of Education (Board) amended the Facilities Services Division (FSD) Strategic Execution Plan (SEP) to approve a charter augmentation grant for the Rise Kohyang MS Project for up to \$32,793,996 and authorized staff to negotiate and execute agreements for the financing of the Project (Board Report No. 014-20/21), which included taking title of the property per Los Angeles Unified's Charter Augmentation Grant Program Guidelines (Guidelines);

Whereas, On February 8, 2022, the Board adopted the Mitigated Negative Declaration and the Mitigated Monitoring and Reporting Plan pursuant to the California Environmental Quality Act and subsequently approved the Rise Kohyang MS Project (Board Report Nos. 134-21/22 and 135-21/22).

Whereas, the State of California through the California State Allocation Board has provided a preliminary apportionment of capital funding for the design and construction of the Rise Kohyang MS Project through the Charter School Facilities Program and such funding requires Los Angeles Unified hold title to the Project Site in trust for the benefit of the public school system;

Whereas, Bright Star transferred title of the Project Site to Los Angeles Unified on July 15, 2022;

Whereas, pursuant to the Charter Schools Act, Rise Kohyang MS has been chartered by the Los Angeles Unified through 2026, and is currently in good standing;

LOS ANGELES UNIFIED SCHOOL DISTRICT
Board of Education Report

Attachment A

Whereas, the demolition of a vacant parking lot and the construction of facilities for charter school operation will provide the surrounding community with the benefit of increased educational options;

Whereas, Bright Star has presented the Rise Kohyang MS Project to the Los Angeles City Council District 1 Office and its Board of Directors and has not received any opposition for the proposed Project;

Whereas, no local jurisdiction with authority over the property has denied the Rise Kohyang MS a variance, conditional use permit, or other permit requiring discretionary action related to the property;

Whereas, Bright Star has complied, and will continue to comply, with all provisions of environmental review as required by Los Angeles Unified policy and applicable State law;

Whereas, no portion of the site may be occupied without a corresponding form of substantial completion, through which process the Division of the State Architect must ensure that the site is safe for school use;

Whereas, Bright Star has agreed and acknowledged in writing that by granting a zoning exemption, Los Angeles Unified does not make any representation or warranty, express or implied, regarding the condition, safety, or fitness of the property for school use or any other use or purpose;

Whereas, Bright Star has agreed to waive its Proposition 39 rights for the period coterminous with their occupancy of the exempted property;

Whereas, pursuant to California Government Code Section 53094, which provides that by a two-thirds vote of its members, the governing board of a school district may render a city or county zoning ordinances, including city redevelopment plans inapplicable for use of property as classroom facilities; now, therefore, be it;

Resolved, that each of the above recitals reflects a finding of fact by the Board which forms a part of this Resolution;

Resolved, that the Board finds that the Los Angeles Unified has complied with Government Code Section 53094 and Public Resources Code Section 21151.2 with respect to the Rise Kohyang MS Project; and be it

Resolved, that the Board hereby invokes its authority under California Government Code Sec. 53094 to exempt the proposed Rise Kohyang MS Project from the City of Los Angeles zoning ordinances, including city redevelopment plans as inapplicable;

Resolved, that the Board finds that Los Angeles Unified has complied with California Government Code Section 53094 with respect to the proposed use of property for school purposes; and be it finally

LOS ANGELES UNIFIED SCHOOL DISTRICT
Board of Education Report

Attachment A

Resolved, that the Board specifies that the record of proceedings on which the Board's decision is based includes all documents, records (written, electronic or otherwise), comments (both oral and in writing), and testimony submitted in response to or prepared in connection with the proposed Project, and all actions, proceedings, and other matters relating thereto. The record of proceedings is located at the Los Angeles Unified School District Facilities Services Division, 333 S. Beaudry Avenue, 23rd Floor, Los Angeles, California and the custodian of record of proceedings is the Facilities Services Division.

PASSED, APPROVED AND ADOPTED this 7th day of February 2023, by the following vote:

AYES:

NOES:

ABSENT:

ABSTAIN:

Michael McLean
Executive Officer of the Board of Education

Date